

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1095
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 32-3230, Arizona Revised Statutes, is amended to
3 read:

4 32-3230. Minors; irreversible gender reassignment surgery;
5 gender transition procedures; referrals;
6 prohibition; right of action; enforcement;
7 definitions

8 A. A physician OR OTHER HEALTH PROFESSIONAL may not DO ANY OF THE
9 FOLLOWING:

10 1. Provide irreversible gender reassignment surgery to any
11 individual who is under eighteen years of age.

12 2. PROVIDE A GENDER TRANSITION PROCEDURE TO ANY INDIVIDUAL WHO IS
13 UNDER EIGHTEEN YEARS OF AGE.

14 3. REFER ANY INDIVIDUAL WHO IS UNDER EIGHTEEN YEARS OF AGE TO
15 ANOTHER HEALTH PROFESSIONAL FOR A GENDER TRANSITION PROCEDURE.

16 B. A physician OR OTHER HEALTH PROFESSIONAL may provide any of the
17 following to an individual who is under eighteen years of age:

18 1. Services to an individual born with a medically verifiable
19 disorder of sex development, including an individual with external
20 biological sex characteristics that are irresolvably ambiguous, such as
21 being born with forty-six XX chromosomes with virilization or forty-six
22 XY chromosomes with undervirilization or having both ovarian and
23 testicular tissue.

24 2. Services ~~provided~~ when a physician has otherwise diagnosed a
25 disorder of sexual development and has determined through genetic or

1 biochemical testing that the individual does not have normal sex
2 chromosome structure, sex steroid hormone production or sex steroid
3 hormone action.

4 3. The treatment of any infection, injury, disease or disorder that
5 has been caused by or exacerbated by the performance of gender transition
6 procedures, whether or not the gender transition procedure was performed
7 in accordance with state and federal law.

8 4. Any procedure undertaken because the individual suffers from a
9 physical disorder, physical injury or physical illness that would, as
10 certified by a physician, place the individual in imminent danger of death
11 or impairment of major bodily function unless surgery is performed.

12 ~~[C. PUBLIC MONIES MAY NOT BE DIRECTLY OR INDIRECTLY USED, GRANTED,~~
13 ~~PAID OR DISTRIBUTED TO ANY INDIVIDUAL, ENTITY OR ORGANIZATION THAT~~
14 ~~PROVIDES GENDER TRANSITION PROCEDURES TO ANY INDIVIDUAL WHO IS UNDER~~
15 ~~EIGHTEEN YEARS OF AGE. IN PROVIDING HEALTH CARE SERVICES, A GENDER~~
16 ~~TRANSITION PROCEDURE MAY NOT BE PROVIDED TO ANY INDIVIDUAL WHO IS UNDER~~
17 ~~EIGHTEEN YEARS OF AGE IN THE FOLLOWING SITUATIONS:~~

18 ~~1. BY OR IN A HEALTH CARE FACILITY OWNED BY THIS STATE OR A COUNTY~~
19 ~~OR LOCAL GOVERNMENT.~~

20 ~~2. BY A PHYSICIAN OR OTHER HEALTH PROFESSIONAL WHO IS EMPLOYED BY~~
21 ~~THIS STATE OR A COUNTY OR LOCAL GOVERNMENT.~~

22 ~~D. THE ARIZONA HEALTH CARE COST CONTAINMENT SYSTEM MAY NOT PROVIDE~~
23 ~~REIMBURSEMENT OF COSTS OR COVERAGE FOR A GENDER TRANSITION PROCEDURE TO~~
24 ~~ANY INDIVIDUAL WHO IS UNDER EIGHTEEN YEARS OF AGE.]~~

25 ~~[E.]~~ [C.] ANY HEALTH PROFESSIONAL WHO MAKES A REFERRAL FOR OR
26 PROVIDES A GENDER TRANSITION PROCEDURE TO ANY INDIVIDUAL WHO IS UNDER
27 EIGHTEEN YEARS OF AGE COMMITS UNPROFESSIONAL CONDUCT AND IS SUBJECT TO
28 DISCIPLINE BY THE APPROPRIATE LICENSING ENTITY OR HEALTH PROFESSION
29 REGULATORY BOARD.

30 ~~[F.]~~ [D.] AN INDIVIDUAL MAY ASSERT AN ACTUAL OR THREATENED
31 VIOLATION OF THIS SECTION AS A CLAIM OR DEFENSE IN A JUDICIAL OR
32 ADMINISTRATIVE PROCEEDING AND OBTAIN COMPENSATORY DAMAGES, INJUNCTIVE
33 RELIEF, DECLARATORY RELIEF OR ANY OTHER APPROPRIATE RELIEF. AN INDIVIDUAL
34 SHALL BRING A CLAIM FOR A VIOLATION OF THIS SECTION NOT LATER THAN TWO
35 YEARS AFTER THE DATE THE CAUSE OF ACTION ACCRUES. AN INDIVIDUAL WHO IS
36 UNDER EIGHTEEN YEARS OF AGE MAY BRING AN ACTION THROUGHOUT THE
37 INDIVIDUAL'S MINORITY THROUGH A PARENT OR NEXT FRIEND AND MAY BRING AN
38 ACTION IN THE INDIVIDUAL'S OWN NAME ON ATTAINING EIGHTEEN YEARS OF AGE
39 UNTIL TWENTY YEARS AFTER ATTAINING EIGHTEEN YEARS OF AGE.

40 ~~[G.]~~ [E.] NOTWITHSTANDING ANY OTHER LAW, AN ACTION UNDER THIS
41 SECTION MAY BE COMMENCED AND RELIEF MAY BE GRANTED IN A JUDICIAL

1 PROCEEDING WITHOUT REGARD TO WHETHER THE INDIVIDUAL COMMENCING THE ACTION
2 HAS SOUGHT OR EXHAUSTED AVAILABLE ADMINISTRATIVE REMEDIES. IN ANY ACTION
3 OR PROCEEDING TO ENFORCE THIS SECTION, A PREVAILING PARTY WHO ESTABLISHES
4 A VIOLATION OF THIS SECTION SHALL RECOVER REASONABLE ATTORNEY FEES.

5 ~~[H.]~~ ~~[F.]~~ THE ATTORNEY GENERAL MAY BRING AN ACTION TO ENFORCE
6 COMPLIANCE WITH THIS SECTION. THIS SECTION DOES NOT DENY, IMPAIR OR
7 OTHERWISE AFFECT ANY RIGHT OR AUTHORITY OF THE ATTORNEY GENERAL, THIS
8 STATE OR ANY AGENCY, OFFICER OR EMPLOYEE OF THIS STATE, ACTING UNDER ANY
9 LAW OTHER THAN THIS SECTION, TO INSTITUTE OR INTERVENE IN ANY PROCEEDING.

10 ~~E.~~ ~~[F.]~~ ~~[G.]~~ For the purposes of this section:

11 1. "Biological sex" means the biological indication of male and
12 female in the context of reproductive potential or capacity, such as sex
13 chromosomes, naturally occurring sex hormones, gonads and nonambiguous
14 internal and external genitalia present at birth, without regard to an
15 individual's psychological, chosen or subjective experience of gender.

16 2. "CROSS-SEX HORMONES" MEANS EITHER OF THE FOLLOWING:

17 (a) TESTOSTERONE OR OTHER ANDROGENS GIVEN TO BIOLOGICAL FEMALES IN
18 AMOUNTS THAT ARE LARGER OR MORE POTENT THAN WOULD NORMALLY OCCUR NATURALLY
19 IN HEALTHY BIOLOGICAL SEX FEMALES.

20 (b) ESTROGEN GIVEN TO BIOLOGICAL MALES IN AMOUNTS THAT ARE LARGER
21 OR MORE POTENT THAN WOULD NORMALLY OCCUR NATURALLY IN HEALTHY BIOLOGICAL
22 SEX MALES.

23 ~~2.~~ 3. "Gender" means the psychological, behavioral, social and
24 cultural aspects of being male or female.

25 ~~3.~~ 4. "Gender transition" means the process in which ~~a person~~ AN
26 INDIVIDUAL goes from identifying with and living as a gender that
27 corresponds to the ~~person's~~ INDIVIDUAL'S biological sex to identifying
28 with and living as a gender different from the ~~person's~~ INDIVIDUAL'S
29 biological sex and may involve social, legal or physical changes.

30 5. "GENDER TRANSITION PROCEDURE":

31 (a) MEANS ANY MEDICAL OR SURGICAL SERVICE, INCLUDING PHYSICIAN
32 SERVICES, INPATIENT AND OUTPATIENT HOSPITAL SERVICES OR PRESCRIBED DRUGS
33 RELATED TO GENDER TRANSITION, THAT SEEKS TO EITHER:

34 (i) ALTER OR REMOVE PHYSICAL OR ANATOMICAL CHARACTERISTICS OR
35 FEATURES THAT ARE TYPICAL FOR AN INDIVIDUAL'S BIOLOGICAL SEX.

36 (ii) INSTILL OR CREATE PHYSICAL OR ANATOMICAL CHARACTERISTICS THAT
37 RESEMBLE A SEX DIFFERENT FROM AN INDIVIDUAL'S BIOLOGICAL SEX, INCLUDING
38 MEDICAL SERVICES THAT PROVIDE PUBERTY-BLOCKING DRUGS, CROSS-SEX HORMONES
39 OR OTHER MECHANISMS TO PROMOTE THE DEVELOPMENT OF FEMINIZING OR
40 MASCULINIZING FEATURES IN AN INDIVIDUAL OF THE OPPOSITE BIOLOGICAL SEX OR

1 GENITAL OR NONGENITAL GENDER REASSIGNMENT SURGERY PERFORMED FOR THE
2 PURPOSE OF ASSISTING AN INDIVIDUAL WITH A GENDER TRANSITION.

3 (b) DOES NOT INCLUDE ANY OF THE FOLLOWING:

4 (i) SERVICES TO INDIVIDUALS BORN WITH A MEDICALLY VERIFIABLE
5 DISORDER OF SEX DEVELOPMENT, INCLUDING AN INDIVIDUAL WITH EXTERNAL
6 BIOLOGICAL SEX CHARACTERISTICS THAT ARE IRRESOLVABLY AMBIGUOUS, SUCH AS
7 BEING BORN WITH FORTY-SIX XX CHROMOSOMES WITH VIRILIZATION OR FORTY-SIX XY
8 CHROMOSOMES WITH UNDERVIRILIZATION OR HAVING BOTH OVARIAN AND TESTICULAR
9 TISSUE.

10 (ii) SERVICES PROVIDED WHEN A PHYSICIAN HAS OTHERWISE DIAGNOSED A
11 DISORDER OF SEXUAL DEVELOPMENT AND HAS DETERMINED THROUGH GENETIC OR
12 BIOCHEMICAL TESTING THAT THE INDIVIDUAL DOES NOT HAVE NORMAL SEX
13 CHROMOSOME STRUCTURE, SEX STEROID HORMONE PRODUCTION OR SEX STEROID
14 HORMONE ACTION.

15 (iii) THE TREATMENT OF ANY INFECTION, INJURY, DISEASE OR DISORDER
16 THAT HAS BEEN CAUSED OR EXACERBATED BY THE PERFORMANCE OF A GENDER
17 TRANSITION PROCEDURE, WHETHER OR NOT THE GENDER TRANSITION PROCEDURE WAS
18 PERFORMED IN ACCORDANCE WITH STATE AND FEDERAL LAW OR WHETHER OR NOT
19 FUNDING FOR THE GENDER TRANSITION PROCEDURE IS ALLOWABLE UNDER THIS
20 SECTION.

21 (iv) ANY PROCEDURE UNDERTAKEN BECAUSE THE INDIVIDUAL SUFFERS FROM A
22 PHYSICAL DISORDER, PHYSICAL INJURY OR PHYSICAL ILLNESS THAT WOULD, AS
23 CERTIFIED BY A PHYSICIAN, PLACE THE INDIVIDUAL IN IMMINENT DANGER OF DEATH
24 OR IMPAIRMENT OF A MAJOR BODILY FUNCTION UNLESS SURGERY IS PERFORMED.

25 ~~4.~~ 6. "Irreversible gender reassignment surgery" means a medical
26 procedure performed for the purpose of assisting an individual with a
27 gender transition, including any of the following:

28 (a) Penectomy, orchiectomy, vaginoplasty, clitoroplasty or
29 vulvoplasty for biologically male patients or hysterectomy or ovariectomy
30 for biologically female patients.

31 (b) Metoidioplasty, phalloplasty, vaginectomy, scrotoplasty or
32 implantation of erection or testicular prostheses for biologically female
33 patients.

34 (c) Augmentation mammoplasty for biologically male patients and
35 subcutaneous mastectomy for female patients.

36 ~~5.~~ 7. "Physician" means a person who is licensed pursuant to
37 chapter 13 or 17 of this title.

38 8. "PUBERTY-BLOCKING DRUGS" MEANS EITHER OF THE FOLLOWING WHEN USED
39 TO DELAY OR SUPPRESS PUBERTAL DEVELOPMENT IN CHILDREN FOR THE PURPOSE OF
40 ASSISTING AN INDIVIDUAL WITH A GENDER TRANSITION:

1 (a) GONADOTROPIN-RELEASING HORMONE ANALOGS OR OTHER SYNTHETIC DRUGS
2 USED IN BIOLOGICAL SEX MALES TO STOP LUTEINIZING HORMONE SECRETION AND
3 TESTOSTERONE SECRETION.

4 (b) SYNTHETIC DRUGS USED IN BIOLOGICAL SEX FEMALES TO STOP THE
5 PRODUCTION OF ESTROGENS AND PROGESTERONE.

6 ~~[9. "PUBLIC MONIES":~~

7 ~~(a) MEANS STATE, COUNTY OR LOCAL GOVERNMENT MONIES.~~

8 ~~(b) INCLUDES MONIES AUTHORIZED OR APPROPRIATED TO ANY DEPARTMENT,~~
9 ~~AGENCY OR INSTRUMENTALITY UNDER STATE LAW OR DERIVED FROM ANY FUND IN~~
10 ~~WHICH THOSE MONIES ARE DEPOSITED.]~~

11 Sec. 2. Effective date; purpose

12 A. This act is effective from and after March 31, 2027.

13 B. The effective date of this act is delayed so that minors in this
14 state who are currently using puberty-blocking drugs or cross-sex hormones
15 have time for appropriate medication tapering and discontinuation under
16 the care of the minor's physician or other health professional.

17 Enroll and engross to conform

18 Amend title to conform

1095JUDE.docx

01/20/2026

02:52 PM

S: ZD/ci

130AKUPKZ